STANDARD OPERATING PROCEDURE			P-3220
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **JEFFERY L. DAVIS** **SHERIFF**	DATE ISSUED 06/01/06	DATE REVISED **03/02/21**	DATE REVIEWED 02/02/25
		APPROVED: *JEFFERY L. DAVIS*		
CHAPTER TITLE ROAD PATROL	RESOURCES DELAWARE v. PROUSE, 440 U.S. 648 (1979)			
SUBJECT MOBILE DATA COMPUTERS	CROSS REFERENCE G-4100 County Property and Equipment G-4500 Computers G-4510 NCIS P-3500 Communications Procedures			

I. Purpose:

The purpose of this policy is to establish guidelines for the use of the Mobile Data Computers assigned to road patrol units.

II. Policy:

The Sarpy County Sheriff's Office has developed a Mobile Data Computer System to improve the overall effectiveness of its deputies while enhancing their safety. The system consists of a computer and radio modem mounted in each patrol unit. These devices enable the deputy to connect to the Sarpy County Mobile Data Computer System. This system allows deputies to access the State of Nebraska and NCIC Computer Systems and send car-to-car messages. Calls for service may also be sent to the Mobile Data Computer by the Communications Division using Computer-Aided-Dispatch.

III. Definitions:

A. **MDC**: Mobile Data Computer.

B. **NCIC**: National Crime Information Center.

C. **NCIS**: Nebraska Crime Information System.

D. **MACH:** Mobile Architecture for Communications Handling.

E. **Electronic Messaging**: The sending of messages (email) between units on the MDC System.

F. **System Administrator**: The person assigned to maintain the operating hardware and software which comprises the Sarpy County Mobile Data Computer System.

IV. **Procedures**:

A. **Authorized Users**: The use of the Sarpy County Sheriff's Mobile Data Computer System is limited to department employees authorized and trained to use the MDC System. Department employees must be NCIC certified to operate the MDC.

B. **Use of the MDC**: The MDC is an extension of the County, State and National Computer Systems. The messages received on the MDC are for law enforcement purposes only. MDC users should guard against the unintentional or improper dissemination of information and messages received on the MDC.

1. While information that is received on the MDC through NCIC/NCIS etc. is confidential, electronic messaging (email) and other traffic may fall under open records law and could be available to defendants, the press and the public.

2. Deputies shall notify Communications via radio of all motor vehicle stops, field interviews, etc. The fact that NCIC and NCIS information may be obtained and transmitted using a mobile computer does not negate the radio communications procedures (P-3500).

C. **Operation of the MDC**:

1. The MDC should only be used when the patrol vehicle is stopped or when it can be used in a safe manner.

2. Officers are prohibited from eating food or drinking beverages in a way which could result in food or beverage being spilled on or into the MDC or its components.

3. The normal operating temperature of a mobile computer is between 50 and 85 degrees Fahrenheit. If the patrol unit has not been used during the previous tour in cold weather, the vehicle should be operated for at least twenty (20) minutes with the heater running prior to attempting to turn on the computer.

4. **NCIC/NCIS Inquiries**: The MDC may be used to run driver's license, registration, and other computer checks through the NCIC and NCIS Systems. MDC operators shall:

a) Follow all NCIC System rules regarding use of the NCIC System.

b) Run NCIC/NCIS System checks only for valid law enforcement purposes.

c) Not use the NCIC/NCIS System resources unnecessarily, for personal gain, the commercial gain of others, or personal entertainment.

5. **Motor Vehicle Stops**: Deputies are encouraged to query as many registration numbers as possible during a tour of duty. Probable cause to stop as defined by *Delaware v. Prouse* shall be established prior to initiating a stop.

a) A deputy may run a look-up inquiry on a vehicle without any prior suspicion of wrong doing.

b) As a result of information received on the MDC, the deputy may make a valid traffic stop for violations or irregularities related to the vehicle's license or registration without additional corroboration.

c) Deputies may also make traffic stops based on information regarding the registered owner of the vehicle under the following conditions:

(1) After receiving information that the registered owner of a vehicle is suspended or has a Sarpy County warrant for his or her arrest, the deputy must attempt to verify that the driver of the vehicle to be stopped generally matches the sex and age description of the registered owner listed on the mobile computer.

(2) Deputies must also verify suspension and warrant information via the radio with Communications prior to initiating the traffic stop.

d) **NCIC/NCIS "hit" Response**: In the event an inquiry results in an NCIC/NCIS "hit" response (wanted person or stolen vehicle), deputies shall notify Communications via the radio that a "hit" has been received. All "hits" shall be confirmed through the communications center prior to taking action based solely upon this response.

6. **Electronic Messages**: The MDC can be used for official communications between Sarpy County patrol units, the

Communications Center, and between other law enforcement officials authorized to operate on the MDC System. Guidelines for sending car-to-car messages are as follows:

a) Electronic messages may not be sent to further one's personal gain, the commercial gain of others, or for personal entertainment.

b) Electronic messages must relate to legitimate law enforcement purposes.

c) The use of obscene, profane, discriminatory, demeaning or degrading language is prohibited.

d) The MDC should not be used to send personal greetings to officers of other agencies.

D. **Maintenance of the MDC**: Deputies shall not remount, rewire, reprogram or modify any computer or MDC equipment mounted in any patrol unit except as authorized by the System Administrator. All malfunctions shall be reported using established procedures (see G-4100 County Property and Equipment).

E. **Log on/Log off Procedures**:

1. Deputies are required to log onto the system using their assigned badge/serial number and password. Officers shall not use another officer's badge/serial number or password to operate an MDC.

2. Deputies must log off the MDC at the end of their tour of duty.

3. After logging off, the Premier MDT software must be exited and Windows shut down.

4. When the message, "It is now safe to turn off your computer" appears on the screen, the computer shall be turned off.

F. **Internet Access Cards or Wireless Connections:** Laptop MDCs may be equipped with an internet access card to provide deputies expanded availability of information including LRMS.

1. Deputies must have permission from their shift supervisor to sign out an internet access card from the Assembly Room.

2. Deputies shall be logged into NetMotion Mobility Client when the MDC program is in use.

3. Deputies shall return cards at the end of the shift and complete the Internet Access Card log.

G. **MACH:** The MACH program is a GPS based system, which allows for real-time location mapping with cross-agency operability. This system also allows messaging to any law enforcement user in the state that is logged into the program. Deputies with access to the MACH program are required to sign on at the beginning of each duty shift. Deputies shall remain signed on for the duration of their duty shift.

H. All policies and procedures regarding the use of Sarpy County Sheriff's Office Computers and use of the internet apply to the use of mobile data computers in patrol units (see G-4500 Computers).